

The Merchant Shipping (Registration of Indian Fishing Boats) Rules, 1988

Source: <https://indiankanoon.org/doc/162866541/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Merchant Shipping (Registration of Indian Fishing Boats) Rules, 1988

UNION OF INDIA

India

The Merchant Shipping (Registration of Indian Fishing Boats) Rules, 1988

Rule THE-MERCHANT-SHIPPIING-REGISTRATION-OF-INDIAN-FISHING-BOATS-RULES-1988 of 1988

Published on 1 January 1988

Commenced on 1 January 1988

[This is the version of this document from 1 January 1988.]

[Note: The original publication document is not available and this content could not be verified.]

The Merchant Shipping (Registration of Indian Fishing Boats) Rules, 1988

Published vide Notification No. G.S.R. 866

G.S.R. 866. - In exercise of the powers conferred by sub-section (1) read with clauses (a), (b), (c) and (1) of sub-section (2) of section 435U of the Merchant Shipping Act, 1958 (44 of 1958

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Merchant Shipping (Registration of Indian Fishing Boats), Rules, 1988.

(2)

They shall come into force on the date of their publication in the Official Gazette,

2.

Definitions.

- In these rules, unless the context otherwise requires:-

(a)

"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(b)

"Central Register" means the register of fishing boats maintained by the Director General of Shipping;

(c)

"Certificate" means a certificate of registry granted under section 435G of the Act;

(d)

"Form" means a form specified in Schedule 1;

(e)

"Port of registry"; in relation to a fishing boat, means a port notified under section 435G of the Act;

(f)

["Registrar"]

[Substituted by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994 for 'register'.]

means the [registrar]

[Substituted by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994 for 'register'.]

of Indian fishing boats appointed under section 435E of the Act;

(g)

"Schedule" means a schedule appended to these rules;

(h)

"tonnage" in relation to a fishing vessel, means the tonnage as determined under the Merchant Shipping (Tonnage Measurement of Ship) Rules, 1987, and in relation to a sailing vessel or a boat or craft failing under clause (c) of section 435B of the Act, means the tonnage as determined under the Merchant Shipping (Tonnage Measurement of Sailing Vessels) Rules, 1960.

3.

Application for certificate of registry.

(1)

Every application for the grant of a certificate of registry of an Indian fishing boat under section 435G of the Act, shall be made in Form 1, to the registrar of the port of registry nearest to the place where the owner resides or where the fishing boat is built or is based.

(2)

[Every application under sub-rule (1) shall be accompanied by-

(a)

a declaration of ownership by the applicant in the Form II or III, as the case may be;

(b)

the documents of title to the fishing boat;

(c)

the builders 'certificate'.]

(3)

[Every application for the grant of certification of registry of an existing Indian fishing boat under section 435G of the Act, in the revised format, as specified in 'Form IV' shall be made in Form I, without payment of any fee, to the Registrar of the port of Registry of that Indian fishing boat.

(4)

Every application under sub-rule (3) shall be accompanied by -

(a)

the particulars of the Indian fishing boat in Form IV;

(b)

the original certificate of registry previously granted under subsection (4) of Section 435G of the Merchant Shipping Act 1958 or under any other law for the time being in force.]

4.

Name of fishing boat.

(1)

When apply for the certificate of registry, the owner shall specify the name which he proposes to adopt for the fishing boat.

(2)

If the name proposed by the owner is the same or similar to the name by which any other fishing boat has been previously registered at the port of registry, the register may require the owner to suggest some other name under which the fishing boat may be registered.

(3)

[When the name suggested by the owner has been approved by the registrar, the fishing boat shall be registered under that name within a period of 60 days]

[Substituted by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994 for 'When the name suggested by the owner has been approved by the register, the fishing boat shall be registered under that name.']

5.

Official number.

(1)

On scrutiny of an application under rule 3, if the registrar is satisfied about the nationality of the applicant and his title to the fishing boat, he shall assign to the fishing boat an official number from a consecutive series maintained at each port of registry preceded by 3 distinguishing letters indicating the port of registry notified under section 435D and 435E of the Act;

(2)

The official number once assigned to an Indian fishing boat shall not be changed except when the fishing boat is registered again at another port of registry, nor shall the official number be registered for another vessel.

6.

Manner of ascertainment of tonnage of Indian fishing boat.

(1)

Every owner of a fishing vessel shall cause to ascertain its tonnage in accordance with the Merchant Shipping (tonnage Measurement of Ships), Rules, 1987. [However, tonnage of Indian Fishing Boats, less than 20 meters in length, can also be measured by the Registrar of India Fishing Boats besides the Surveyor]

[Inserted by Amendment in 1998 vide G.S.R. 774(E), dated 28th December, 1998]

(2)

Every owner of a sailing vessel or boat or craft falling under clause (b) of section 435B of the Act shall cause to ascertain its tonnage in accordance with [the Merchant Shipping (Sailing Vessels) Rules, 1977]

[Substituted by Amendment in 1998 vide G.S.R. 774(E), dated 28th December, 1998 for 'the Merchant Shipping (Tonnage Measurement of Sailing Vessels) Rules, 1960'.]

7.

Certificate of registry.

- [(1) The Registrar shall, after the tonnage of an Indian fishing boat has been ascertained enter the particulars specified in sub-section (3) of section: 435G of the Act in the register [*]

[Substituted by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994 for 'The register shall, after the tonnage of Indian fishing boat has been ascertained, enter the particulars specified in sub-section (3) of section 435G of the Act in the register in Form IV kept by him for the purpose and grant a certificate of registry'.]

kept by him for the purpose and grant a certificate of registry within a period of 60 days from the date of application.]

[Inserted by Amendment in 2012 vide G.S.R. 10(E), dated 13th January, 2012]

(2)

Every certificate of registry granted under sub-section (4) of section 435G of the Act shall be in [Form IV]
[Substituted by Amendment in 2009 vide G.S.R. No. 448(E), dated 24th June, 2009 for the words 'Form V'.]

;

(3)

The certificate of registry shall, on demand by a registrar, any officer of the customs or of the Mercantile Marine Department, be produced by the owner, the skipper on the tindal or any other person in charge of the fishing boat.

8.

Manner of painting of name and official number, etc. on Fishing boat.

(1)

The distinguishing letters indicating the port of registry, the name of the fishing boat by which it is registered and the official number assigned to it under rule 5, shall be painted in English, in regional language and in Hindi Alphabet in white oil colour against a black background on both quarters of the fishing boat near the stern.

(2)

All the letters and figures painted shall be of such size as the registrar may determine in each case but shall not be less than one decimetre in height and two centimetres in width.

(3)

The letters and figures referred to in this rule shall also be painted on the dinghies attached to the fishing boat.

9.

Change of name.

(1)

The name of an Indian fishing boat under which it has been registered shall not, after such registry, be altered or changed except with the approval of the registrar.

(2)

Every application for the change of name of such fishing boat shall be made to the registrar of the fishing boat's port of registry and shall specify the reasons for the proposed change.

(3)

[The registrar may, if he is satisfied that the change proposed is reasonable and necessary, approved such change within a period of 60 days from the date of receipt of application.]

[Substituted by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994 for 'The registrar may, if he is satisfied that the change proposed is reasonable and necessary, approve such change'.]

(4)

Where the name of an Indian fishing boat, which is mortgaged, is sought to be changed, the consent of the mortgage shall also be obtained for the proposed change.

(5)

The new name which has been approved by the registrar shall be entered in the register in the certificate of registry of that fishing boat, and shall accordingly be painted on the fishing boat in accordance with rule 8.

10.

Registry of alterations.

(1)

An application for alterations of the registry of an Indian fishing boat shall be made in Form VI within one month of such alterations to the registrar of the port where the fishing boat is registered.

(2)

Where the alterations do not materially affect the dimensions or the tonnage of the fishing boat, the registrar shall enter the alterations in the register and also in the certificate of registry of the fishing boat.

(3)

Where the alternations materially affect the dimensions or the tonnage of the fishing boat the registrar shall proceed to register the fishing boat de novo.

(4)

[Where the Registrar proceeds to register the fishing boat de novo as required by sub-rule (3) above, he shall do so within a period of 60 days on receipt of application or completion of alteration, whichever is later.]

[Added by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994.]

11.

Transfer of registry.

(1)

If all the person having an interest in an Indian fishing boat, whether as owner or a mortgage, desire that the registry of the fishing boat should be transferred from one port to another, they may apply in form VII to the registrar of the port of registry for such transfer.

(2)

The registrar of the port of the registry shall, if he is satisfied that the proposed transfer is unobjectionable, transmit the particulars of the Indian Fishing boat and the encumbrances, if any thereon to the registrar of the intended port of registry.

(3)

The registrar at the intended port of registry, after he is satisfied that the new official number with the distinguishing letters of the port are duly marked on the fishing boat in accordance with the provisions of rule 8, shall issue a fresh certificate of registry and communicate to the registrar of the original port of registry the official number assigned to the Indian fishing boat and the date of its registry.

12.

Closing of registry.

(1)

Where the registry of an Indian fishing boat is transferred under rule 11, the registrar of the original port of registry shall close the registry of the Indian fishing boat in his register.

(2)

Where the registry of an Indian fishing boat at any port is closed under section 345-P of the Act or under sub-rule (1), the registrar of the port shall forthwith submit to the Director General of Shipping a statement of the particulars of the fishing boat whose registry is closed and the circumstances in which the registry is closed.

13.

Transfer of fishing boat or interest therein.

(1)

The owner, or in the case of joint ownership all the owners, of an Indian fishing boat desiring to transfer such fishing boat or any interest therein, shall apply to the registrar of the port of registry for permission to do so.

(2)

[The Registrar shall, after making such enquiry as he thinks necessary, approve the transfer of ownership of fishing boat or any interest therein within a period of 60 days from the date of receipt of application.]

[Substituted by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994 for 'The registrar shall, after making such enquiry as he thinks necessary, forward the application together with his recommendation thereon to the Director General of Shipping for approval'.]

(3)

[If the proposed transfer is approved, and after the sale has been effected, the transfer shall present to the registrar of the port a declaration of ownership the instrument of transfer and the existing certificate of registry of the fishing boat and thereupon, the registrar shall enter the particulars of the transfer in his register and issue a fresh certificate of registry within a period of 60 days.]

[Substituted by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994 for 'If the proposed transfer is approved, and after the sale has been effected, the transfers shall present to the registrar of the port a declaration of ownership the instrument of transfer and the existing certificate of registry of the fishing boat and thereupon, the registrar shall enter the particulars of the transfer in his register and issue a fresh certificate of registry'.]

14.

Mortgage of Indian fishing boat.

(1)

Every instrument of mortgage of an Indian fishing boat or any interest therein shall be in Form VIII or Form IX, as the case may be.

(2)

The registrar shall, after satisfying himself that the instrument of mortgage has been properly executed, record the same

in his register with the date and hour of acceptance and shall also make an endorsement to that effect on the mortgage instrument.

(3)

Where there are two or more mortgages on the same fishing boat, their respective priorities shall be indicated in the register in the appropriate column by the letters A, B, C ... in alphabetical order.

(4)

Where an Indian fishing boat belonging to a company or a cooperative society is mortgaged, the registrar shall not register the mortgage unless it has also been registered with the Registrar of Companies under section 134 of the Companies Act, 1956 (1 of 1956) or, as the case may be, with the registrar of co-operative societies under the Co-operative Societies Act, 1912 (2 of 1912) or any other law relating to co-operative societies for the time being in force in any State.

(5)

When the mortgage debt is fully discharged, the registrar shall, after satisfying himself that the receipt endorsed on the mortgage instrument is in order and that it is properly witnessed and where the mortgage is by a company or a co-operative society, also that a memorandum of satisfaction has been entered in the register of changes under section 138 of the companies Act, 1956 or, as the case may be, under the Co-operative Societies Act, 1912, make an entry in the register relating to the discharge of the mortgage.

(6)

No payment of any instalment of a mortgage debt shall be recorded in the register.

15.

Transfer of ownership by operation of law.

(1)

Where the title to an Indian fishing boat devolves on any person by operation of law, such person shall apply to the registrar specifying the circumstances in which he has acquired title to the fishing boat and also adducing evidence of such acquisition.

(2)

If the registrar, after making such enquiry as he thinks fit, is satisfied about the claim of the applicant, he shall register the particulars of the change of owner ship in his register and also endorse the particulars in the certificate of registry of the fishing boat.

16.

Fishing boats owned by minors.

(1)

Where an Indian fishing boat is registered in the name of a person as the guardian of a minor, the ownership of the fishing boat shall remain with the minor, and on attainment of majority he may apply to the registrar for altering the entries in the register relating to the fishing boat.

(2)

The registrar shall then issue a fresh certificate in the name of the applicant.

(3)

No fees shall be charged for issuing a certificate of registry under sub-rule (2).

(4)

[Where the registrar proceeds to issue a fresh certificate in the name of the applicant as required under sub-rule (2) above, he shall do so within a period of 60 days from the date of application.]

[Added by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994.]

17.

Provisional certificate of registry.

(1)

Where an application for the registry or the registry a new of an Indian fishing boat is pending before a registrar and the registrar is, having regard the circumstances of the case, of the opinion that the fishing boat should not be detained at the port till the issue of the certificate of registry, he may issue a provisional certificate of registry in Form X.

(2)

Every provisional certificate issued under sub-rule (1) shall specify the particulars of the fishing boat and of the owner

and skipper or tindal or any other person in charge of the fishing boat, or in any other person in charge of the fishing boat, or in the case of registry a new, the particulars as entered in the original certificate of registry.

(3)

A provisional certificate shall be valid for such period not exceeding three months as may be specified therein :

Provided that the registrar may, if he is satisfied that in the circumstances of the case it is necessary to do so, extend the period of validity of a provisional certificate by a further period not exceeding two months.

(4)

The provisional certificate shall, on the expiry of the period of its validity or at the time of the issue of a regular certificate of registry, whichever is earlier, be surrendered to the registrar.

18.

Issue of duplicate copies of certificates.

(1)

The registrar may, on application made by the owner in this behalf, issue a duplicate copy of a certificate of registry marked "Duplicate" in red ink if he is satisfied that the original certificate has been destroyed, lost, mislaid, mutilated or defaced.

(2)

Every application for a duplicate copy of a certificate of registry shall be accompanied by a declaration regarding the circumstances in which the original certificate was destroyed, lost, mislaid, mutilated or defaced.

(3)

Where a duplicate copy of a certificate of registry has been obtained on the ground that the original has been lost or mislaid, and such original is subsequently found or received by the owner, he shall forthwith surrender the original certificate to the registrar who shall cancel the same.

(4)

A duplicate copy of the certificate of registry shall not be granted on the ground that the original has been mutilated or defaced unless the mutilated or defaced certificate is surrendered to the registrar.

19.

Central Register.

(1)

The Director General of Shipping shall maintain a Central register which shall contain all the entries recorded in the registers kept by the registrars.

(2)

On completion of the registry of a fishing boat at a port, the registrar of the port shall immediately transmit to the said Director General a copy of the entries in his register relating to the fishing boat.

(3)

The particulars of every other transaction subsequently recorded in the register shall also be reported forthwith to the said Director General.

20.

Inspection of register and supply of copies of entries.

(1)

The register maintained by a registrar shall, on application made in this behalf and on payment of fee specified in Schedule II, be open to inspection during office hours by any person.

(2)

A certified copy of any entry in a register may be granted by the registrar to any person on application made in that behalf and on payment of fee specified in Schedule II.

21.

Declaration of ownership.

- Every declaration of ownership under these rules shall be made before a registrar, Justice of the Peace, a Judicial Magistrate of the First Class, a Mamlatdar or a commissioner of oaths.

22.

Fees.

- Fees shall be levied under these rules at the rates and for the purposes specified in Schedule II and be paid to the

registrar along with the application for recording the transaction.

23.

Entry of particulars of existing fishing boats.

(1)

The owner of every fishing boat which was registered before the commencement of these rules shall within a period of three months of such commencement produce before the registrar the relevant certificate of registry.

Provided that the Director General of Shipping may, for sufficient reasons, extend the said period up to six months.

(2)

The registrar shall enter in his register the particulars of the fishing boat and any outstanding mortgage of the fishing boat or any interest therein and shall also assign a new official number to the fishing boat.

(3)

The official number assigned under sub-rule (2) shall be painted in the manner specified in rule 8 in the place of the number, if any, already painted thereon.

24.

[Appeals.

[Added by Amendment in 1994 vide G.S.R. 218, dated 21st April, 1994.]

- Any person aggrieved by the decision of the Registrar in respect of transfer of ownership of fishing boat or any interest therein, mortgaging of Indian fishing boat or grant of certificate of registration, may appeal in writing to the Principal Officer, Mercantile Marine Department of the respective districts within ninety days from the date of receipt of the decision of the Registrar]

[Substituted by Amendment in 2009 vide G.S.R. No. 448(E), dated 24th June, 2009]

I

[Form I]

[Form I Substituted by Amendment in 2009 vide G.S.R. No. 448(E), dated 24th June, 2009]

Application for Registry of a Fishing Boat

[See sub-rule (1) of rule 3]

To

The Registrar of Fishing Boats,

Port

Sir,

I/ We of being the owner of fishing Boat called the hereby request that the said fishing boat be registered in my/ our name/s and a Certificate of Registry be issued to me/ us.

2. Details of Owner(s) of the said fishing boat are as follows:

Name

Occupation

Permanent residence or principal place of business

Share (s) held

3. Category of the ownership

(Company/ Individual/ Co-operative society/ Government/ Hypothecation)

4. Area of operation

5. Particulars of fishing boat

(i)

Name and address of building yard

(ii)

Port of Previous Registry (if any)

(iii)

Details of previous mortgages (if any)

(iv)

Year of build/ re-build of fishing boat

(v)

Hull material (wood/ Fiber glass/ Steel/ Composite)

(vi)

Length (Mtrs) (v) Breadth (Mtrs) (vi) Depth (Mtrs)

(vii)

Engine details ;

Make

Year of make

Engine number

HP

.....

.....

.....

Name & address of manufacturer

Number and diameter of cylinders

Length of stroke

Revolution per minute (RPM)/ Speed

Fuel Capacity

(viii)

Type of vessel (Motorized mechanical/ Motorized non-mechanical/ Non-motorized/ open/ semi decked/ decked fitted with auxiliary engine)

(ix)

Number of Masts/ Bulkheads/ Holds

(x)

Tonnage capacity (Gross Tons)

(xi)

Details of Fishing gear

6. Communication equipment

(i)

Maritime Mobile Station Identification (MMSI) No., if allotted

(ii)

Automatic identification System (AIS) (if fitted) Make & Model

(iii)

Emergency Position Indicating Radio Beacon (EPIRB) (if fitted) Make & Model

(iv)

Search & Rescue Transponder (SART) (if fitted) Make & Model

(v)

Other communication equipment, if fitted

7. Number of crew

8. Base of operation

9. The following documents are enclosed herewith:-

(a)

Declaration of ownership

(b)

Builders certificate (in respect of registration of new vessel) or Bill of sale if purchased

10. I/ We request that a name for the Fishing vessels be approved from the following:

I

II

III

Place

Date

Signature of Left thumb impression of owner

[Form II]

[Form II Substituted by Amendment in 2009 vide G.S.R. No. 448(E), dated 24th June, 2009]

Declaration of Ownership

(By Individuals/ Joint Owner/ Partnership Firm)

[See sub-rule (2) of rule 3]

I/ we, the under signed, hereby declare that I/ We am/ are citizen (s) of India, residing Permanently/ having the principal place of business at

..... and that the Fishing boat called the particulars of which are given below and built at in the year and was purchased by me/ us for the sum of Rs. was materially altered and rebuilt by me/ us was inherited by me/ us from

whose name appear in the Register as the owner of the said fishing boat and who died at on the

and that I/ We am/ are the sole owner(s) of the said fishing boat and that no person or persons has or have any interest, either legal or beneficial, right, title, share of property therein or thereto. And I/ We make this solemn declaration conscientiously believing the same to be true.

Particulars of the Fishing Boat

Official Number, date and port of registry

.....

Registered

Dimensions Length

Breadth Depth Gross Tonnage

..... Register Tonnage Cubic Meters

.....

Signature (s) of applicant

Declared before me at this day of 20

Seal of Office

Issued by the

Signature and designation of Registrar

[Form III]

[Form III Substituted by Amendment in 2009 vide G.S.R. No. 448(E), dated 24th June, 2009.]

Declaration of Ownership

(By Company)

[See sub-rule (2) of rule 3]

I, the undersigned, permanently residing and being the duly authorized agent/ duly constituted attorney of Company Limited, hereby declare as follows:-

The said Company was registered under the Companies Act, 1956, on the and has its principal place of business at where all the important business is controlled and managed. The said company satisfies the requirements of clause (b) of section 21 of the Merchant Shipping Act, 1958, and is the sole owner of the Fishing Boat called, the particulars of which are given below. The said fishing boat was built at in the year and/ purchased by the said Company for the sum of Rs. / was materially altered and rebuilt by the said Company.

To the best of my knowledge and belief, no person or persons has or have any interest, either legal or beneficial, right, title, share of property in the said fishing boat. And I make this solemn declaration conscientiously believing the same to be true.

Particulars of the Fishing Boat

Official Number, date and port of registry Registered.

Dimensions:

Length

Breadth

Depth

Gross Tonnage

Registered Tonnage

Cubic Meters

Declared before me at 20

This Day of

Signature for and on behalf of

..... Company Ltd.

Signature

Designation

[Form IV]

[Form IV Substituted by Amendment in 2009 vide G.S.R. No. 448(E), dated 24th June, 2009]

Certificate of Registry of a Fishing boat

[See sub-rule (2) of rule 7]

1. Name of fishing boat

2. Registration Number & Date (KL*)

3. Call sign,(where applicable)

4. Port & District where registered

5. Name(s) of the owner(s)

Permanent residence or Principal place of business

Shares held

(i)

.....

.....

(ii)

.....

.....

(iii)

.....

.....

6. Category of the ownership (Company/ Individual/ Co-operative Society/ Government/
Hypothecation)

7. Area of operation

8. Particulars of fishing boat

(i)

Name and address of building yard

(ii)

Year of build/ re-build of fishing boat

(iii)

Hull material (Wood/ Fibre glass/ Steel/ composite)

(iv)

Length (Mtr)

(v)

Breadth (Mtrs)

(vi)

Depth (Mtrs)

(vii)

Engine details;

Make

Year of make

Engine number

HP

.....

.....

.....

.....

Name & address of manufacturer

Number and diameter of cylinders

Length of stroke

Revolution per minute (RPM)/ Speed

Fuel capacity

(viii)

Type of vessel (Motorized mechanical/ Motorized non mechanical/ Non-motorized)

(ix)

Number of Masts/ Bulkheads/ Holds

(x)

Tonnage capacity (Gross Tons)

(xi)

Fishing gear

9. Communication equipment:

(i)

Maritime Mobile Station Identification (MMSI) No., if allotted

(ii)

Automatic Identification System (AIS), (if fitted) Make & Model

(iii)

Emergency Position Indication Radio Beacon (EPIRB) (if fitted) Make & Model

(iv)

Search & Rescue Transponders (SART) (if fitted) Make & Model

(v)

Other Communication equipment, if fitted

10. Life Saving appliances

11. Number of crew

12. Base of operation

(* State specific prefix letters as allotted to motor vehicles in the State)

Place

Date

Signature and seal of registering authority

Conditions of the certificate of registration

1. This certificate of registration is granted under the provisions of MS Act 1958, as amended.

2. Any change in the fishing boat's name, other markings, layout, design, capacity of the vessel should be affected only with the prior approval of the registration authority

3. The certificate must be produced for inspection on demand by any authorized person.

4. Should the vessel be lost, broken up or rendered unfit for service, this certificate should be surrendered to the registrar of the fishing boat.

[Form V]

[Form V Omitted by Amendment in 2009 vide G.S.R. No. 448(E), dated 24th June, 2009.]

[Form VI]

[Form VI Substituted by Amendment in 2009 vide G.S.R. No. 448(E), dated 24th June, 2009.]

Application For Registry of Alterations

(See sub-rule (1) of rule 10)

To

The Registrar of Fishing Boats

Port of

Sir,

I/ We, the undersigned being the owners of the Fishing Boat called Official Number hereby report that the following alterations have been carried out to the fishing boat on
(Date, Month, Year)

I/ We therefore request that these alterations may kindly be registered and a fresh Certificate of Registry, issued on payment of the prescribed fee.

The fishing boats existing Certificate of Registry is enclosed herewith.

Signature of owner(s)

Form VII

Application for Transfer of Port of Registry

[See rule 11(1)]

To

The Registrar of Fishing Boats.

Port of -----

Sir,

I/ We -----, being the owner(s) of Fishing Boat called -----, Official No. -----, registered at your port hereby that the registry of the said fishing boat may be transferred to the port of ----- for the following reasons:-

*2 The said fishing boat has been mortgaged in favour of ----- as will be verified from the Register maintained by you and the mortgagees have no objection to the proposed transfer. In this connection, his/ their letter, dated the ----- agreeing to the transfer of the port of registry to ----- is enclosed in original for your record.

Yours faithfully,

*Delete, if not applicable:

Form VIII

Issued by the

Government of India

Instrument of Mortgage

(To be Executed by Individuals/ Joint Owners/ Partnership Firm

[See rule 14(1)]

I/ we, the undersigned ----- in consideration of the sum of Rupees ----- this day lent to me/ us by ----- residing permanently/ having my/ our principal place of business at ----- do hereby for myself/ ourselves and my/ our heir executors, or administrators covenant with the said ----- firstly that I/ We and/ or my/ our heirs, executors or administrators will pay to the said ----- the said sum of Rupees ----- together with interest thereon at the rate of ----- percent, per annum on the ----- day of ----- year ----- and secondly that if the said Principal sum is not paid on the said day I/ We or my/ our heirs, executors or administrators, will, during such time as the same or any part thereof remains unpaid, pay to the said ----- interest on the whole or such part thereof as may for the time being remain unpaid, at the rate of ----- percent, per annum by equal half yearly payments on the ----- day of ----- and ----- day of ----- in every year; and that for better securing to the said ----- the repayment in manner aforesaid of the said principal sum and interest I/ We hereby mortgage to the said ----- the fishing boat called ----- Official Number ----- Port of Registry ----- together with all her boats appurtenance, etc. Lastly, I/ We for myself/ ourselves and my/ our heirs, executors or administrators covenant with said ----- and his/ their assigns that I/ We have power, to mortgage the said fishing boat in the manner aforesaid and the same is free from encumbrances save as appear by the Register of the said vessel.

Signed by the above named in my presence.

Signature(s)

Signature -----.

Designation -----

Seal of Office -----

Received the sum of Rupees ----- in discharge of the within written security dated this ----- day of

----- year -----.

Signed in my presence

Signature (s) of Mortgages (s)

Seal of office -----

Signed in my presence

Signature

Designation

issued by the Government of India

Form IX

Instrument of Mortgage

(To be Executed by a Company or Body Corporate)

[See rule 14(1)]

We, the ----- Company Limited, having our principal place of business at ----- in consideration of the sum of Rupees ----- this day lent to us for ourselves and our successors covenant with the said ----- and his/ their/ its assigns firstly that we/ our successors will pay to the said ----- or its/ their assigns the said sum of Rupees ----- together with interest thereon at the rate of ----- per cent, per annum on the ----- day of ----- year ----- ; secondly that if the said principal sum is not paid on the said day, we or our successors will, during such time as the same or any part thereof remains unpaid pay to the said ----- interest on the whole or such part thereof as may for the time being remain unpaid, at the rate of ----- percent, per annum by equal half yearly payments on the ----- day of ----- and ----- day ----- in every year; and that for better securing to the said ----- the repayment in the manner aforesaid of the said principal sum and interest, we hereby mortgage to the said ----- the Fishing Boat called ----- Official Number ----- Port of Registry ----- together with all her boats and other appurtenances, etc. Lastly we for ourselves and our successors covenant with the said ----- and its/ their assigns that we have power to mortgage the said vessel together with all her boats and appurtenances, etc. and that the same is free from encumbrances save as appear by the Register of the said vessel. In witnesses whereof we have subscribed our name(s) and common seal this ----- day of ----- year -----.

Signed by the above named in my presence of

Signature (s) For and on behalf

Signature

Company Limited

Designation

Company's Seal.

Seal of Office

Received the sum of Rupees ----- in discharge of the within mentioned security. Dated ----- at ----- this ----- day of ----- year -----

Signed in my presence

Signature -----

Designation -----

Signature (s) of Mortgage (s)

Form X

Issued by the Government of India

Provisional Certificate of Registry

[See rule 17(1)]

This is to certify that Fishing Boat ----- Official Number -----

----- of ----- Tons ----- belonging to

----- is hereby permitted to ply pending issue of Certificate of Registry.

This Provisional Certificate shall remain in force for a period of three months or until the Fishing Boat is granted a

Certificate of Registry whichever is earlier.

Port of -----

Date -----

Registrar of Fishing Boat

II

[See rules 20 and 22]

(1)

For initial registry

Rs.

Fishing Boat up to 7 tons gross

02.00

Fishing Boat exceeding 7 tons gross but not exceeding 25 tons gross

14.00

Fishing Boat exceeding 25 tons gross but not exceeding 50 tons gross

20.00

Fishing Boat exceeding 50 tons gross but not exceeding 75 tons gross

30.00

Fishing Boat exceeding 75 tons gross but not exceeding 100 tons gross

40.00

Fishing boat over 100 tons gross

Rs.40 for first 100 tons plus 50 naye paise for each tone exceeding first 100 tons.

(2)

For registry of alterations

10.00

(3)

For transfer of registry

20.00

(4)

For registry of transfer of ownership or interest

20.00

(5)

For registry of mortgage

20.00

(6)

For change of name of Fishing Boat

10.00

(7)

For provisional certificate of registry or extension thereof

2.00

(8)

For inspection of entries in the register book and/ or supply of certified copies of the entries and other documents relating to registry

10.00

(9)

For Duplicate copy of certificate of registry

10.00

Related AI tags, queries and research notes

Translation